

PREMIER HEALTHCARE ALLIANCE, L.P.
Data Stewardship Program

PART I

GENERAL PROGRAM POLICIES

Version 2022

TABLE OF CONTENTS

	Page
GP-1. PURPOSE AND SCOPE.....	1
A. Purpose of the Program.....	1
B. Scope.....	2
C. Modification.....	2
GP-2. OVERSIGHT OF THE PROGRAM	2
A. Chief Privacy Officer.....	2
B. Chief Information Security Officer.....	5
C. IT Steering Committee.....	7
D. Data Stewards	7
E. ITS Data Stewardship	8
GP-3. COMPLIANCE REQUIRED	9
A. Violations of Applicable Law.....	9
B. Potential Sanctions.....	9
C. Inspection By Government Agencies	10
GP-4. CLASSIFICATION OF DATA.....	10
A. Public Data.....	10
B. Protected Data.....	11
GP-5. SAFEGUARDING PROTECTED DATA:	14
GP-6. PROMOTING PRIVACY BY DESIGN IN BUSINESS PRACTICES	15
A. Foundation Principles	15
B. Individual Responsibility.....	16
C. Change Management	17
D. Periodic Privacy Risk Assessments	17
GP-7. MONITORING AND REVIEW OF THE PROGRAM.....	18
A. Monitoring the Program.....	18
B. Ongoing Evaluation of Information Systems Security	18
C. Retention of Program Documentation.	19
GP-8. COMPLAINT PROCEDURE	19
A. Who to Contact	19
C. Retention of Complaint Documentation	20
GP-9. POLICY AGAINST RETALIATION.....	20
A. Prohibited Conduct	20
B. Reporting of Retaliatory Behavior.....	20

GP-1. Purpose and Scope

A. Purpose of the Program

Premier is committed to protecting the privacy of Protected Data as required by the Applicable Law of the jurisdictions in which it does business. It is Premier's policy to comply with all Applicable Laws governing privacy and security of regulated data, to the extent such laws are applicable to Premier and implicated by its business activities. The purpose for adopting this Global Data Stewardship Program and the policies and procedures thereto (the "**Program**") is to mitigate the risk of inappropriate access, use, disclosure loss and theft of Protected Data with which Premier comes in contact in connection with Premier's business.

1. Background on Premier Organizational Privacy Components

Premier is a unique organization which contains diverse business components. Some of these components within Premier may function as a Covered Entity component; other components function as Business Associates; still other components are not HIPAA-regulated entities. Wherever applicable this Program applies to all business components. Additional component level procedures will be implemented to supplement certain areas that are unique to specific components

2. Background on Legal Obligations in the US

As a Business Associate and Covered Entity, Premier must comply with certain administrative simplification sections of the Health Insurance Portability and Accountability Act of 1996, as amended by the Health Information Technology for Economic and Clinical Health Act and regulations promulgated thereunder (collectively, "**HIPAA**").

The HIPAA regulations applicable to Premier include the standards for the Privacy of Individually Identifiable Health Information (the "**Privacy Standards**"), the Security Standards for the Protection of Electronic Protected Health Information (the "**Security Standards**"), the standards for enforcement of HIPAA (the "**Enforcement Standards**") and the requirements for Breach Notification for Unsecured Protected Health Information (the "**Breach Requirements**") (collectively, the "**HIPAA Regulations**"). All of HIPAA Regulations establish requirements with respect to the Use and Disclosure of Protected Health Information by Premier. In addition to HIPAA, there are state-based healthcare industry-focused laws that require businesses to protect the privacy and security of Protected Health Information.

In addition, if Premier uses or receives any data from the government, the Federal Privacy Act of 1974 may apply, and the Premier General Counsel will provide additional required restrictions with respect to such data.

Further, a number of states require businesses to implement safeguards to protect the personal information of that particular state's residents. Many U.S. states have enacted comprehensive breach notification laws and consumer privacy laws, requiring notice to individuals, and in some cases government agencies, in the event of a data security breach.

3. Definition of Applicable Law

Together, HIPAA and any additional, non-preempted local, state, or national laws that primarily address the privacy and security of data, as well as Industry Standards (such as the Payment Card Industry – Digital Security Standards) that apply to Premier are referred to in this Program as “**Applicable Law**.” If you have any questions as to whether a particular law applies, please contact Premier’s Chief Privacy Officer.

B. Scope

Premier Healthcare Solutions Inc. and its affiliates shall be referred to as “**Premier**”. This Program and its Policies apply to all partners, employees, attorneys, contractors, vendors and consultants, volunteers, trainees, and other persons whose conduct, in the performance of work for Premier, are under the direct control of Premier, whether or not they are paid by Premier (collectively, “**Personnel**”).

C. Modification

Recognizing that implementing and maintaining the Program requires evolving standards and requirements, Premier may, from time to time, implement other policies and procedures and may modify existing policies and procedures, to reflect its commitment to confidentiality and compliance with Applicable Law. Any additional policies and procedures or amendments that address privacy and security of data, as well as Industry Standards (such as the Payment Card Industry – Digital Security Standards) must be approved by Premier’s Chief Privacy Officer, Chief Security Officer, and reviewed by Premier’s General Counsel or designee.

GP-2. Oversight of the Program

In furtherance of this Program, Premier recognizes that responsibility for the proper development, implementation and enforcement of the Program policies and procedures must reside in identified qualified individuals. To that end, Premier designates specific individuals to have the following roles and responsibilities.

A. Chief Privacy Officer

The Chief Privacy Officer for Premier oversee all activities related to the development, implementation, maintenance, oversight of, and adherence to the Program as they apply to Premier.

Premier may choose to have Chief Privacy Officer if the need arises due to potential separate and/or unique nature of Privacy requirements for designated areas of expertise. . Unless otherwise indicated by the text or context of a Program provision, “Chief Privacy Officer” shall collectively refer to the Chief Privacy Officer position identified above. The Chief Privacy

Officer will be required to fulfill the job description to support their components based on their related job description and responsibilities as defined by the Chief Compliance Officer and HR.

The Chief Privacy Officer's job description will require expertise in Applicable Law and include the responsibility to evaluate, monitor, document and certify Premier's compliance with Applicable Law and to receive and address complaints under this Program. In particular, the Chief Privacy Officer is responsible for implementing, supervising and maintaining the Program. The Chief Privacy Officer takes all steps necessary to achieve those purposes, including:

Expertise and Development and Implementation of the Program

- In coordination with Premier leadership, implement, update and maintain the Program, which shall be consistent with Applicable Law.
- Maintain documentation of the Program.
- Maintain comprehensive and current knowledge of Applicable Law and best practices.
- Monitor developments in Applicable Law and best practices and revise and update the Program as necessary.
- Collaborate and coordinate with the Chief Information Security Officer as appropriate or requested.
- Monitor Premier's compliance with the Program and with any contractual obligations relating to Protected Data
- Collaborate and coordinate with the Premier Impact Assessment process/Change Management request to ensure monitoring and appropriate privacy best practices are implemented in new initiatives as well as change in business processes, tools or vendors.
- Collaborate and coordinate with the Chief Information Security Officer and other appropriate Premier compliance departments to perform periodic risk assessments and compliance auditing and monitoring involving Personnel, Business Associates, and other contractors to ensure compliance with Applicable Law.
- Establish with Premier management and operations a mechanism to track access to Protected Data and to allow qualified individuals to review or receive a report on such activity.
- Analyze the effectiveness, performance, and quality of the Program.
- Periodically report on the status of the Program to Premier leadership.

- Develop and maintain documentation and templates needed to implement the Program and otherwise maintain compliance with Applicable Laws (e.g., template authorizations and waivers, privacy practice notices and materials, Business Associate Agreements).
- Participate in the development, implementation, and ongoing compliance monitoring of all business associate agreements, and ensure all privacy concerns, requirements, and responsibilities are addressed.
- Oversee, direct, and provide or arrange for the provision of initial and ongoing privacy training and orientation to appropriate Personnel and third party contractors as appropriate.

Compliance

- Establish and administer a process for receiving, documenting, tracking and investigating complaints concerning privacy practices, policies, and procedures in coordination and collaboration with similar compliance functions within Premier.
- Work with Human Resources, Premier legal counsel, and Premier leadership to develop and administer, in a consistent manner, appropriate sanctions applicable to Personnel, vendors, and contractors for failure to comply with privacy policies and procedures.
- Coordinate with Human Resources to ensure no intimidating, discriminatory, or other retaliatory actions occur against a person who files, testifies, assists, or participates in any investigation, compliance review, proceeding, or hearing related to a privacy violation, or who opposes any unlawful act or practice.

Coordination and Leadership

- Serve as the liaison with the IT Steering Committee to ensure appropriate coordination of the Program.
- Initiate, facilitate, and promote activities to foster information privacy awareness within Premier and, as appropriate, third party contractors.
- Serve as an internal resource and consultant to Premier on privacy related activities and inquiries and serve as a back-up to the Chief Information Security Officer as necessary with respect to security compliance related activities and inquiries.
- Serve as Premier's liaison to the Office of Civil Rights and other federal and state agencies with jurisdiction to enforce Applicable Law in connection with external compliance reviews or investigations, requests for guidance, and other inquiries or communications regarding the Program.

B. Chief Information Security Officer

The Premier Chief Information Security Officer's job description will include responsibility for working with the Chief Privacy Officer, Premier Management, and the IT department to implement and maintain the technical safeguards, that are appropriate to protect all Protected Data capable of being accessible by, stored on, or transmitted by Premier's Information Systems. The Chief Information Security Officer is also responsible for overseeing implementation and maintenance of the Physical Safeguards Policies, and any further physical safeguards that are appropriate to protect all Protected Data in Premier's custody, possession and control.

Working under the direction of Premier's Chief Administrative Officer, Chief Financial Officer and Treasurer, and in collaboration with the Chief Compliance Officer and the Chief Privacy Officer, the Chief Information Security Officer is primarily responsible for security controls related to the availability, integrity, and confidentiality of electronically stored and/or transmitted Protected Data in compliance with the Program as they apply to Premier. The activities of the Chief Information Security Officer include implementing policies and procedures that address the controls for protecting the confidentiality, integrity and availability of Protected Data.

Expertise and Development and Implementation of the Program

- Implement the Program's information security policies, controls and procedures, which shall be consistent with Applicable Law.
- Maintain comprehensive and current knowledge of Applicable Law and best practices. Monitor developments in Applicable Law and best practices and propose updates to the Program with respect to information security and related technology as necessary.
- Advise the Premier Chief Privacy Officer on the information technologies necessary to maintain Programmatic compliance with Applicable Law
- Inform Premier leaders as required of potential security risks in accordance with the process set forth in the Program
- Maintain documentation of the Program with respect to security issues.
- Analyze the effectiveness, performance, and quality of the Program with respect to security issues. Periodically report to Premier leadership regarding the same.
- Collaborate and coordinate with the Chief Privacy Officer and other appropriate Personnel to perform periodic risk assessments and compliance auditing and monitoring involving Personnel and contractors to ensure compliance with Applicable Law.
- Report to Premier IT Steering Committee and leadership on the outcome of such risk assessments and audits.
- Responsible for developing the security education, training and awareness for Personnel .

- Document and maintain all risk analysis and remediation actions taken by Premier to reduce information security risks.
- Manage retention of performance improvement activity documentation for security functions and responsibilities.
- Coordinate the development of Premier's disaster recovery and business continuity plans for information systems, and test readiness.
- Work with third party contractors to improve information security practices to the extent they affect or otherwise implicate Premier.
- Develop and document specific security protocols, standards and systems to maintain the protection of Premier Protected Data.

Compliance

- Monitor compliance with the Program with respect to security issues among Personnel.

Coordination and Leadership

- Serve as a security advisory position to the Chief Privacy Officer and senior and/or other business leaders, who are responsible for the security of business information systems and Protected Data.
- Serve as an internal resource and consultant to Premier on information security matters.
- Initiate, facilitate, and promote activities to foster information security education, training and awareness within Premier and, as appropriate, third party contractors.
- Work with the Chief Privacy Officer and IT Steering Committee to ensure appropriate coordination for the Program.
- Be primarily responsible for the creation, implementation and ongoing coordination of Access Controls across the Premier enterprise to enable successful implementation of Access Restrictions defined in the Program.

C. IT Steering Committee

Premier recognizes that effective management of privacy and information security should include an independent and multi-disciplinary team responsible for oversight of privacy and security activities within Premier. Members of the committee include:

- Chief Privacy Officer
- VP Risk Management and Compliance

- Chief Information Security Officer
- Chief Compliance Officer or designee
- The General Counsel or designee attorney (when needed)
- President Performance Services or designee - Chair
- ITS Data Stewardship (when needed)
- Business Unit key representatives from each area (when needed)

The IT Steering Committee, under the leadership of the Chair, shall periodically report on its activities to, and shall be accountable to, the Premier Executive Leadership Team.

D. Data Stewards

The Business Unit representatives, is an informal designation that can be shared between multiple individuals within a related Business Unit as necessary, will be responsible for coordinating day to day privacy and security activities in their business area. These individuals will be available and a point of contact for the ITS Data Stewardship and related members of the IT Steering Committee for their activities and requested information applicable to the related Business Unit.

Business Unit Data Steward Responsibilities:

A Data Steward's function is to have working knowledge of the day to day data accessed and used within their Business Unit. They will work with the ITS Data Stewardship, and other members of the IT Steering Committee to represent their specific privacy and security needs related to their Business Unit.

Responsibilities include:

- Work with the IT Steering Committee members to provide information and assist with data stewardship needs related to their Business Unit.
- Assist in the ownership and implementation of action items related to the privacy and security needs for the Protected Data within their Business Unit.
- Work with and provide updates to the ITS Data Stewardship or members of the IT Steering Committee on action items on a regular basis as defined by the IT Steering Committee.
- Maintain an inventory of the datasets used by their Business Unit.

- Maintain an understanding of the contractual implications for data access and use within the datasets used by their Business Unit.
- Work with the ITS Data Stewardship or members of the IT Steering Committee to define processes and procedures necessary to achieve compliance with the Program.
- Assist in identifying additional training, guidance, worksheets or other tools that may be helpful to achieve compliance with the Program.
- Assist the Incident Response team research and mitigation as required.
- Alert the ITS Data Stewardship or the Chief Privacy Officer or Chief Information Security Officer, or their designee to any patterns, practices or behaviors that could compromise or undermine compliance with the Program

E. ITS Data Stewardship

The ITS Data Stewardship's primary responsibility is to serve as the liaison between the Privacy Officer, Chief Information Security Officer and the Business Unit Data Stewards. This individual is responsible for overseeing day to day operations of Program policy implementation and ongoing coordination of Privacy compliance efforts with the Data Steward team members. This individual will work on a detail level with the individual Data Stewards and the Chief Privacy Officer and the IT Steering Committee members as necessary to ensure all issues and concerns are handled appropriately or escalated as necessary to the Chief Privacy Officer or Business Unit owner.

General Provisions Regarding Privacy and Security Personnel

1. Designation. Premier and the applicable Covered Entity governing boards, will designate the Chief Privacy Officer and Chief Information Security Officer in accordance with regular policies and procedures for making personnel designations and organizational decisions.
2. Job Description. Premier will develop and maintain job descriptions for the Chief Privacy Officer and Chief Information Security Officer in accordance with its human resources policies and procedures.
3. Documentation. Premier will maintain a written record of the names and titles of the individuals who serve as Chief Privacy Officer, Chief Information Security Officer, ITS Data Stewardship and the Data and Privacy Stewards from each business area.

GP-3. Compliance Required

This Program is not a statement of ideals. It is a detailed and specific set of policies and procedures. Premier requires that all Personnel strictly comply with the Policies under this

Program. Personnel who fail to comply with any of the Policies may be subject to disciplinary action, up to and including termination. Personnel may be terminated for a single infraction, at Premier's discretion. Any questions or concerns about any policy or procedure should be directed to the Chief Privacy Officer.

A. Violations of Applicable Law

A violation of Applicable Law could be detrimental to Premier, its Personnel and its customers. All deviations from the Policies may be dangerous to the overall privacy and security of Protected Data and Premier's physical and technology systems. Such deviations may compromise the integrity of, or result in an inadvertent disclosure of, Protected Data, or unnecessary exposure of Premier's Personnel, customers, business relationships or colleagues.

B. Potential Sanctions

Failure to follow Premier's Program may lead to civil and criminal liability. Therefore, it is imperative that all Personnel comply with the Program, immediately report any potential violation of the Program to the appropriate Chief Privacy Officer or the Chief Information Security Officer, and assist in investigating any alleged violations. The following are the types of individual sanctions that could be imposed under Applicable Law.

1. Penalties Imposed by Premier. Depending on the severity of the violation, as evaluated by the appropriate Chief Privacy Officer and the Chief Information Security Officer, the responsible supervisor or business unit leader and with appropriate input by Premier's Human Resources Department, and Legal Counsel as necessary, Premier may impose sanctions against members of Personnel who violate this Program that range from a warning to remedial training to immediate termination of employment and/or affiliation and possible reporting to applicable federal and state authorities, as appropriate.

2. Civil and Criminal Sanctions in the USA regarding PHI. With respect to matters involving Protected Health Information, HHS may impose civil fines against individuals and entities who/that violate HIPAA. In addition, HHS may make a criminal referral to the U.S. Department of Justice to prosecute a person who knowingly violated a requirement set forth in HIPAA. Other laws may impose additional liability.

C. Inspection By Government Agencies

The Program, and other information pertaining to Premier's protection of data confidentiality, may be subject to inspection by the relevant government agencies for the purpose of monitoring compliance with Applicable Laws. All requests for inspection should be directed to the Chief Privacy Officer.

GP-4. Classification of Data

Premier has a long standing commitment to protecting sensitive data. Historically, Premier's focus has generally been on protecting sensitive data in the same manner that Premier would

protect proprietary information of Premier’s customers. With the adoption and implementation of this Program, however, it is Premier’s goal to articulate a clear set of standards that will continue to protect the privacy and security of all Premier Information, but that also will protect the privacy and security of the regulated data with which Premier comes into contact in the conduct of Premier’s business, consistent with Applicable Law. As the foundation for building those protections, Premier classifies its data into two major categories: Public Data and Non-Public Data (defined as “Protected Data” herein). The Classification of data and related controls in furtherance of the Program are delineated within Premier’s Information Classification and Retention Policy.

GP-5. Safeguarding Protected Data:

With this Program, Premier adopts and implements administrative, technical, and physical safeguards that are appropriate to the size and scope of Premier, and that are designed to protect the privacy and security of Protected Data in accordance with Applicable Law. The Program consists of the following six policies, which shall be collectively referred to in this Program as the “**Policies**”:

1. General Policies. This collection of policies includes the governance policies, which establish the scope, purpose, foundation principles, oversight and ongoing monitoring of the Program.
2. Administrative Safeguards Policies. This set of policies establishes guidelines for Premier’s employment practices and for how Personnel should conduct themselves in order to meet the objectives of the Program.
3. Physical Safeguards Policies. These policies describe Premier’s practices for safeguarding its premises and Protected Data in transit or during transmission, including through proper Vendor selection and retention procedures.
4. Technical Safeguards Policies. This collection of policies establishes how Premier safeguards its Information Systems and technical infrastructure and in accordance with Premier’s ISMS.
5. Policies Regarding Protected Health Information. These policies prescribe the rules that apply specifically to the handling of Protected Health Information.
6. Privacy Event Response Policies. This set of policies governs Premier’s standards for reporting, investigating, resolving and documenting unauthorized uses or disclosures of Protected Data.

GP-6. Promoting Privacy By Design In Business Practices

A. Foundation Principles

At Premier, Premier's information management practices are built upon the concept of "Privacy by Design." Privacy by Design presents a roadmap for integrating privacy and data security considerations into business models, product development cycles, and new technologies. The concept is grounded in a set of "foundational principles" to guide information management practices in a manner that is consistent with Fair Information Practices ("FIPs"). Premier has adopted the following FIPs to guide Premier's information management practices:

Accountability in handling Protected Data within Premier and with employees, customers, vendors and business partners;

Notice to individuals about how Premier collects, uses, retains, and discloses their Protected Data;

Collection of Protected Data from individuals only for the purposes identified in the Notice of Privacy Practices provided by Premier (the "NOPP");

Choice and consent, subject to Premier's corporate ethics and compliance objectives, for individuals regarding how Premier collects, uses, and discloses their Protected Data;

Use and retention of Protected Data in accordance with the privacy notice and consent that individuals have provided;

Disclosure and onward transfer of Protected Data to vendors and partners only for purposes that are identified in NOPP, and in a security-enhanced manner;

Quality assurance steps to ensure that Protected Data in Premier's records is accurate and relevant to the purposes for which it was collected and not retained for longer than is required under Premier's document retention policy;

Access subject to Applicable Law and professional and Premier's ethics for individuals who want to inquire about and, when appropriate, review and update their Protected Data in Premier's possession;

Enhanced security of Protected Data to help protect against unauthorized access, use, disclosure, and modification; and

Monitoring and enforcement of compliance with the Program, both internally and with Premier's vendors and business partners, along with established processes to address inquiries, complaints, and disputes.

B. Individual Responsibility

By implementing this Program, Premier intends to inspire all Personnel to consider and address privacy and data security throughout the lifecycle of Premier's business activities, customer relationships, and professional services. Premier expects all Personnel to act in a manner that promotes Premier's FIPs when engaging in such activities on behalf of Premier and its

customers, particularly when handling Protected Data. Personnel are encouraged to ask questions if unclear about any aspect of the Program. Personnel must reasonably and appropriately consider and address issues of privacy and data security from the outset through the end of the business activity lifecycle. For example:

1. At the Outset. Personnel must reasonably and appropriately consider and address issues of privacy and data security at the outset of Premier's customer relationships and when commencing any business activity. As an example, at the point of commencing a new customer engagement, responsible Personnel should consider the ways in which that relationship might involve data that will require enhanced privacy protections and, by way of a written letter or notice, as appropriate, and any Business Associate Agreement, ensure that the customer is given sufficient information regarding Premier's collection, use, storage and transfer of Protected Data. Privacy and security related terms and conditions in any transaction or program cannot be altered without explicit permission from the appropriate Chief Privacy Officer and the Chief Information Security Officer for security related terms and, as necessary, Premier General Counsel. New initiatives require the consent of the appropriate Chief Privacy Officer and Chief Information Security Officer and Premier General Counsel as necessary as related to privacy and data security concerns. It is the responsibility of the initiating individual to ensure that privacy and data security is addressed within all business relationships and activity through the use of the appropriate review process.

2. Ongoing. Personnel also must reasonably and appropriately consider and address issues of privacy and data security during the life of the relationship or business activity. Personnel should pay particular attention when changes occur in those relationships (or in the particular business practices) that might implicate privacy or data security concerns. For example, if a data storage vendor informs Premier that it will move Protected Data to the cloud, any Personnel responsible for managing that vendor relationship must take steps to ensure that the changed relationship would continue meet all requirements under the Program and that the privacy and security of the Protected Data would continue to be safeguarded. Modifications to any existing privacy or data security related terms and conditions in any customer relationship cannot be altered without explicit permission from the appropriate Chief Privacy Officer and Premier General Counsel as necessary. Business practice modifications require the consent of the appropriate Chief Privacy Officer and Premier General Counsel as necessary as related to privacy and data security concerns. It is the responsibility of the initiating individual to ensure that privacy and data security is addressed within all business relationships and activity through the use of the appropriate review process.

3. At the End of the Lifecycle. Similarly, Personnel must reasonably and appropriately address issues of privacy and data security at the end of the lifecycle of any business activity. For example, if customer transaction documents contained Protected Data, the Personnel responsible for managing that information, or disposing of that information, must do so in a manner that continues to safeguard that Protected Data consistent with the Program.

By requiring all Personnel to reasonably and appropriately consider and address issues of privacy and data security through the lifecycle of Premier's business activities, customer relationships

and professional services, Premier will be best positioned to promote Premier's FIPs and safeguard Protected Data consistent with Applicable Law.

C. Change Management

Whenever embarking on New Business Initiatives, initiating Personnel are required to complete a Premier Impact Assessment ("PIA") request and submit as directed under Premier Impact Assessment policy and related training. The term "New Business Initiative" includes any proposed initiative that involves Premier's data, services offered by a new or existing vendor who will have access to Premier's data or will render services within Premier's environment; a new use of existing technology; new data sets; new use of existing data; access or use request of regulate/Protected Data; changes to an existing service or product; net technology Proof of Concept; new technology purchase; and/or a new product/service offering.

The Premier Impact Assessment committee shall then review the completed PIA to determine whether the New Business Initiative warrants conducting a formal Premier Risk Assessment. The Premier Impact Assessment committee shall be responsible for overseeing any PIA request and provide a PIA Assessment, which shall identify related risks and address requirements and best practices prior to undertaking the New Business Initiative.

D. Periodic Privacy and Security Risk Assessments

The Chief Privacy Officer and Chief Information Security Officer shall be responsible for overseeing preparation of appropriate privacy and security risk assessments to be conducted in compliance with HIPAA and applicable laws and regulations.

In all events, this risk assessment process shall include evaluation of the reasonably foreseeable internal and external risks to Premier's Information Systems and Protected Data, as well as the safeguards currently in place to manage those risks in each relevant area of operations, Including:

- Personnel management and training;
- Information Systems;
- Information processing, storage, transmission;
- Third-party service providers with access to Protected Data;
- Disposal of paper and electronic records; and
- Security management, including the prevention, detection, and response to attacks, intrusions, or other systems failures.

The appropriate Chief Privacy Officer will coordinate with the Chief Information Security Officer and other required business areas as necessary to identify and initiate appropriate

prevention and remediation actions to respond to material identified risks. Risks will be communicated on a regular basis to the IT Steering Committee and available upon request by Premier's Audit Committee.

GP-7. Monitoring and Review of the Program

A. Monitoring the Program

The IT Steering Committee shall convene to monitor the effectiveness of the Program and the Policies and their scope on a regular basis, at least monthly or whenever there is a material change in business practices that may reasonably implicate the security or integrity of Protected Data. In particular, this regular review of the Program shall confirm that (1) the Program, and the Policies implemented thereby, continue to adequately safeguard Premier's Information Systems and all Protected Data; (2) the Program is operating in a manner reasonably calculated to prevent unauthorized access to or unauthorized use of Protected Data; and (3) the Policies and corresponding procedures are revised as necessary to limit risks to unauthorized disclosure or misuse of Protected Data.

In addition, whenever there is a change in Applicable Law that necessitates a change to the Program or its Policies, the appropriate Chief Privacy Officer will make recommendations that IT Steering Committee and Premier's General Counsel will approve related to prompt documentation and implementation of the revised policy or procedure. The appropriate Chief Privacy Officer will be responsible for determining whether the revised policy or procedure necessitates changes to any existing contracts or contractual relationships with vendors or third party service providers.

B. Ongoing Evaluation of Information Systems Security

In addition to these regular Committee reviews and the privacy and security risk assessments identified above, on an ongoing and regular basis, the Chief Information Security Officer shall monitor and evaluate Premier's Information Systems, including computer systems, storage systems, networks, and other information systems and devices containing Protected Data, to evaluate the degree of security required for maintaining the protection and confidentiality of such Protected Data, the vulnerability of Protected Data to unauthorized disclosure, and how Premier should adapt its systems, procedures and Policies to ensure continued security of such Protected Data.

The monitoring levels will be appropriate to the probability and potential impact of the risks identified, as well as the sensitivity of the information involved. Monitoring may include sampling, systems checks, systems access reports, and any other reasonable measures to verify that the Program, Policies, safeguards, controls, and procedures are effective.

In the event that monitoring activities reveal that the current technical safeguards are not reasonably effective to protect the security and integrity of Protected Data, the Chief Information Security Officer shall prepare an appropriate remediation plan and work in conjunction with the appropriate Chief Privacy Officer to implement that plan.

C. Retention of Program Documentation.

Premier will maintain the Program and its Policies in written or electronic form. Premier will retain copies of each Policy contained in this Program for a period of six (6) years from the date of its creation or the date when it last was in effect, whichever is later.

GP-8. Complaint Procedure

Premier provides a process for individuals to make complaints concerning Premier's compliance with Applicable Law and the Program and Policies. Premier reviews and resolves any complaints it receives regarding its compliance with the Applicable Law and the Program and Policies.

A. Who to Contact

Personnel must report complaints, concerns, suggestions through the multiple means to communicate as offered by Premier's compliance and privacy departments. The appropriate Chief Privacy Officer or Chief Compliance Officer will review and resolve the complaint as necessary in compliance with Premier's policies and applicable law.

B. Retention of Complaint Documentation

Premier will retain copies of the documentation on the complaint for a period of six (6) years from the date the complaint was received by Premier

GP-9. Policy Against Retaliation

A. Prohibited Conduct

Premier strictly prohibits threatening, intimidating, harassing, or taking any other retaliatory action against any individual or other person for the good faith exercise of any right established by this Program, its Policies or Applicable Law. Please refer to Premier's Non-Retaliation Policy and Procedures for Reporting a Concern or Issue.

B. Reporting of Retaliatory Behavior

If Personnel have witnessed or have reason to believe or suspect that another member of Personnel has engaged in any retaliatory act in violation of this policy, the member must immediately report the matter per Premier's policy or to the appropriate Chief Privacy Officer.